

Court No. - 3

Case :- WRIT - C No. - 7407 of 2022

Petitioner :- Pooran Prasad Gupta

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Kumar Srivastava, Bhaju Ram Pprasad Sharma

Counsel for Respondent :- C.S.C.

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Learned counsel for the petitioner prays for and is granted three day's time to serve the copy of this petition upon the learned counsel for the respondent no. 3.

Put up as a fresh case before the appropriate Bench on 8.7.2022.

Order Date :- 5.7.2022

A. V. Singh

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Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the parties.

This writ petition has been filed praying for the following relief:

"(1) Issue a writ order or direction in the nature of certiorari to quash the impugned notice dated 18.10.2021 issued by Respondent No. 3 (Annexure No. 12 of the writ petition).

(2) Issue a writ order or direction in the nature of mandamus commanding and directing the respondents not to proceed any proceeding against the petitioner in relate to matter was already settled."

Learned Standing Counsel states that against the impugned demand notice, the petitioner has remedy under Para 6.8 of the U.P. Electricity Supply Code, 2005.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.3 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 15.7.2022

A. V. Singh